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CASE #	CASE NAME	HEARING NAME
CVRI2300429	MENDEZ NUNEZ vs BOMBAY PARTNERS V ONTARIO, LLC	MOTION FOR SUMMARY JUDGMENT BY KPRS CONSTRUCTION SERVICES

Tentative Ruling:

The Court declines to rule on the plaintiff's evidentiary objections.

The motion of defendant KPRS Construction Services for summary judgment is denied.

Analysis:

The Court does not rule on the evidentiary objections because (1) they fail to comply with CRC, rule 3.1354, and (2) the evidence to which the objections are directed is not material to the Court's analysis.

Plaintiff's supplemental opposition raises triable issues of material fact on whether KPRS retained control over the Project and affirmatively contributed to Plaintiff's injuries.

Retained Control

The evidence, viewed in the light most favorable to Plaintiff, establishes triable issues regarding KPRS's retained control:

- KPRS required its presence and participation in core operational decisions by mandating a formal pre-grading meeting before any equipment could be mobilized, and requiring Crew Inc. to attend weekly pre-job meetings to review site conditions, safety, and project logistics. (PAMF ¶¶ 3–4.)
- KPRS dictated how grading work was to be performed by requiring Crew Inc. to coordinate low areas, soils management, rough grading, and grading operations directly with the KPRS superintendent. (PAMF ¶ 5.)
- KPRS required Crew Inc. to perform grading and fill placement in accordance with the recommendations contained in the Project's soils report. (PAMF ¶ 6.)
- Crew Inc. was contractually required to stop work and notify KPRS upon encountering hazards or unsafe conditions and to report all incidents and injuries to KPRS. (PAMF ¶¶ 7–8.)
- KPRS required compliance with its own site-specific safety program, mandated participation in weekly safety meetings, retained approval authority over designated high-risk activities, and enforced compliance through fines and the unilateral authority to remove workers from the Project for safety violations. (PAMF ¶¶ 9–11.)

- KPRS held weekly progress meetings addressing safety issues. (PAMF ¶ 17.)
- Crew Inc. foreman David Carlson testified that KPRS possessed authority to intervene and direct the removal of personnel whenever it observed a safety violation. (PAMF ¶¶ 12, 19.)
- Aaron Scherer, testifying on behalf of IDIL, the property owner, disclaimed responsibility for safety recommendations concerning the groundskeeping and maintenance of the site, testifying that IDIL “hired KPRS for this.” (PAMF ¶ 13.)
- IDIL entrusted KPRS with overall management of the Project, including supervision through its full-time superintendent, site preparation and ground stabilization, maintenance of a safe jobsite, safety inspections, authority to halt work, approval of earthwork equipment, approval of work methods, and authority to determine whether subsequent phases of construction could proceed. (PAMF ¶¶ 14–23.)

As in *Madden*, “a jury could reasonably infer from this general supervisory power that [KPRS] also retained control over safety conditions, whether it chose to exercise that control or not.” (*Madden, supra*, 165 Cal.App.4th at 1276.) Here, the evidence of KPRS’s contractual rights and actual exercise of control over project coordination, safety meetings, and authority to halt work and remove personnel is substantially more extensive than the general supervision at issue in *Madden*.

Affirmative Contribution

The remaining question is whether KPRS’s exercise of retained control affirmatively contributed to Plaintiff’s injuries. The supplemental opposition raises triable issues on this point.

The Project’s geotechnical reports identified collapsible alluvial soils and required that the building pad be scarified and moisture-conditioned to two to four percent above optimum Modified Proctor moisture content before and during grading. (PAMF ¶¶ 25–39.) Plaintiff’s expert, Brad P. Avrit, P.E., opines that this specification is a technical soil-engineering compaction standard that a grading subcontractor lacks the laboratory equipment and geotechnical licensing to independently test or verify in the field. (Avrit Decl. ¶¶ 16–17.) Consistent with that opinion, Crew Inc. foreman David Carlson testified that Crew Inc. “relied on the soils report provided by KPRS” and had no instrumentation to measure Modified Proctor optimum percentages, relying completely on Southern California Geotechnical to verify compliance. (*Id.* at ¶¶ 18–19.)

KPRS received and reviewed the geotechnical reports, was in direct communication with the Project’s geotechnical consultant, and contractually required Crew Inc. to comply with the soils report. (PAMF ¶¶ 6, 16.) Yet KPRS’s PMQ, Adam Moler, testified that when asked what physical steps KPRS took to ensure Crew Inc. was pre-watering the dry, collapsible ground, KPRS did nothing “[o]ther than observing.” (*Id.* at ¶ 61.) Mr. Avrit opines that KPRS’s failure to coordinate and verify implementation of the

mandatory moisture-conditioning requirements allowed unstable subgrade conditions to persist beneath the tandem scraper operations and affirmatively contributed to the terrain failure and scraper decoupling that caused Plaintiff's injuries. (*Id.* at ¶ 58; Avrit Decl. ¶ 23.)

Under *Hooker*, "if the hirer promises to undertake a particular safety measure, then the hirer's negligent failure to do so should result in liability if such negligence leads to an employee injury." (*Hooker, supra*, 27 Cal.4th at 212, fn. 3.) On this record, a reasonable jury could find that KPRS—having contractually required compliance with the geotechnical specifications, positioned itself as the coordinator of compliance, and led Crew Inc. to rely on KPRS and the geotechnical consultant to verify compliance—affirmatively contributed to Plaintiff's injuries through its failure to ensure the mandatory moisture-conditioning was implemented before allowing heavy equipment operations to proceed on collapsible soils. Unlike *Madden*, which involved passive observation of an obvious hazard by a subcontractor equipped to address it, the geotechnical requirements here were technical specifications the grading subcontractor could not independently verify. (Avrit Decl. ¶ 18.)

Causation

KPRS argues that it was not the legal cause of Plaintiff's injuries because the scraper equipment was owned, maintained, and operated by Crew Inc. However, Plaintiff has presented evidence that the cause of the scraper decoupling was the unstable terrain conditions resulting from KPRS's failure to ensure compliance with the geotechnical stabilization requirements, not mechanical failure of the equipment. (Avrit Decl. ¶¶ 8, 16, 22, 31, 44, 48.) Mr. Avrit opines that Crew Inc. maintained appropriate machinery safety and maintenance procedures and that the evidence does not indicate the scraper equipment failed due to a mechanical defect. (*Id.* at ¶ 41.) Thus, whether KPRS's conduct was a proximate cause of the injury presents a triable issue of material fact.

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CASE #	CASE NAME	HEARING NAME
CVRI2300429	MENDEZ NUNEZ vs BOMBAY PARTNERS V ONTARIO, LLC	MOTION FOR SUMMARY JUDGMENT BY EITHER IDIL RAMONA LP OR KPRS CONSTRUCTION SERVICES

Tentative Ruling:

The Court has no tentative ruling on this motion. Counsel for plaintiff, for KPRS, and for IDIL shall appear to clarify (1) who is the moving party, (2) whether the plaintiff intended to object to a MSJ by that party, (3) whether the plaintiff objects to the motion being deemed to be by IDIL, and (4) whether the plaintiff is willing to stipulate the motion being granted or to the dismissal of IDIL.